

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 19, 2024, the Director of the Spanish Agency for Data Protection issued a resolution in the procedure for the exercise of rights of file EXP202402038 followed against A.A.A. (hereinafter, A.A.A.).

In this procedure, it is noted that the complainant exercised the right of access to the personal data concerning them, without this request being duly addressed, issuing a resolution requiring the following:

FIRST: TO GRANT the complaint filed by B.B.B. considering that the provisions of Article 15 of the GDPR have been infringed and to urge A.A.A., with NIF ***NIF.1, to send the complainant a certification within ten working days from the date this resolution becomes final and enforceable, addressing the exercised right of access or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions carried out as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: The notification of the resolution of the procedure for the exercise of rights, in which A.A.A. was granted a period of ten working days to address the exercise of the right of access, was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, not being collected by the responsible party within the period of availability, as noted in the acknowledgment of receipt in the file, and therefore understood as rejected and the procedure carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on July 30, 2024. Regarding the obligation to interact electronically with the administration (Article 14 LPACAP), it is noted that the respondent engages in a professional activity that requires mandatory registration, and the proper attention to the right of access and the procedure processed by this Agency results from the exercise of that professional activity.

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THIRD: After the period granted for the required actions in that resolution had elapsed, and having the complainant submitted, on October 25, 2024, and December 2, 2024, with entry registration numbers REGAGE24e00081608561 and REGAGE24e00090511202, writings in which they stated that the resolution had not been complied with, a request was sent twice to A.A.A. to submit to the complainant a certification of compliance with that resolution within five working days and, within ten working days, to notify this Agency of the measures adopted.

FOURTH: The aforementioned request was notified on both occasions in accordance with the rules established in the LPACAP.

The first time, the request was returned to the sender as undeliverable (not collected at the office) on November 20, 2024, after two unsuccessful attempts to deliver the postal notification by Correos at the address where A.A.A. is registered, as noted in the acknowledgment of receipt in the file.

The second time, the request was sent electronically and was not collected by A.A.A. within the period of availability, as noted in the acknowledgment of receipt in the file, being understood as rejected and the procedure carried out, in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP,

on December 8, 2024.

FIFTH: After the period of the initial resolution and the subsequent requests had elapsed, A.A.A. has not sent any response to this Agency that certifies that they have attended to the exercised right of access or that they have denied it with justification indicating the reasons why the request cannot be attended to.

SIXTH: No ordinary administrative appeal can be filed against the aforementioned resolution due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have knowledge that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

SEVENTH: On February 4, 2025, the Deputy Director General of Data Inspection, in accordance with Article 48.2 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), due to the vacancy of the position of President and Deputy, agreed to initiate sanctioning proceedings against A.A.A. for the alleged infringement of Article 58.2 of the GDPR, classified in Article 83.6 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

EIGHTH: The aforementioned initiation agreement was received by A.A.A. on February 17, 2025, as noted in the acknowledgment of receipt in the file.

NINTH: On February 19, 2025, A.A.A. proceeded to pay the fine in the amount of 160.00 euros, making use of one of the reductions provided for in the initiation agreement of the present sanctioning procedure, without acknowledging responsibility in relation to the facts referred to in said initiation agreement.

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TENTH: Once the aforementioned initiation agreement has been notified in accordance with the provisions established in the LPACAP and the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from A.A.A. Article 64.2.f) of the LPACAP - a provision of which A.A.A. was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to A.A.A., and the sanction that could be imposed. Therefore, taking into account that A.A.A. has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, a proposal for resolution.

In view of all that has been acted upon, the following are considered proven facts by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: The resolution of the rights exercise procedure of file number EXP202402038 and the requirements for compliance with it indicated in the first, second, third, and fourth recitals were notified in accordance with the provisions of the LPACAP. Said resolution became firm and enforceable due to the passage of the periods provided for the filing of the resources indicated therein.

SECOND: A.A.A. has not sent any response to this Agency that proves compliance with the resolution.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

II

Procedure

Likewise, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

III

Obligation breached

In light of the facts presented, it is considered that A.A.A. has breached the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to A.A.A., for violation of Article 58.2.c) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

c) to order the controller or processor to comply with the requests for exercising the rights of the data subject under this Regulation;"

IV

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

V

Sanction imposed

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In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation referred to in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;
- b) the intentionality or negligence in the infringement;

- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

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For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In light of the circumstances presented, for the violation of Article 58.2 of the GDPR classified in Article 83.6 of the GDPR, it is appropriate to impose on A.A.A. an administrative fine in the amount of 200.00 euros.

VI

Voluntary payment prior to resolution

Article 85 of the LPACAP, under the heading “Termination in sanctioning procedures” provides the following:

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“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

VII

Corrective Measures

This Agency agrees to impose on the responsible party the appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”.

It is warned that failure to comply with the order to adopt measures imposed by this body in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 160.00 euros (ONE HUNDRED SIXTY euros), after applying a 20% reduction on the initially proposed amount of 200.00 euros (TWO HUNDRED euros), due to the voluntary payment of that amount prior to the resolution. All of this in accordance with the provisions of Article 85.3, in relation to Article 85.2, of the LPACAP.

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The effectiveness of the aforementioned reduction is conditioned, in any case, upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, send to the claimant a certification addressing the exercised right of access or providing a reasoned denial indicating the causes for which the request cannot be granted, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202402038. Likewise, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to A.A.A.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment to the withdrawal or renunciation of any action or administrative appeal, this resolution will be final in the administrative route and fully enforceable from its notification. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeaepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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